Answer Form Instructions

Use this form:

1. If someone takes you to court and you need to file an "Answer" in Superior or Circuit Court.
2. To defend yourself against each claim the other party made about you in the case.
3. To make sure the court doesn't decide the case without you, which can happen if you don't file an Answer when you're required to.

Answers are not usually filed in Small Claims court or family court.

Before you get started

- All forms included in this form packet **are required** to file your Answer with the court.

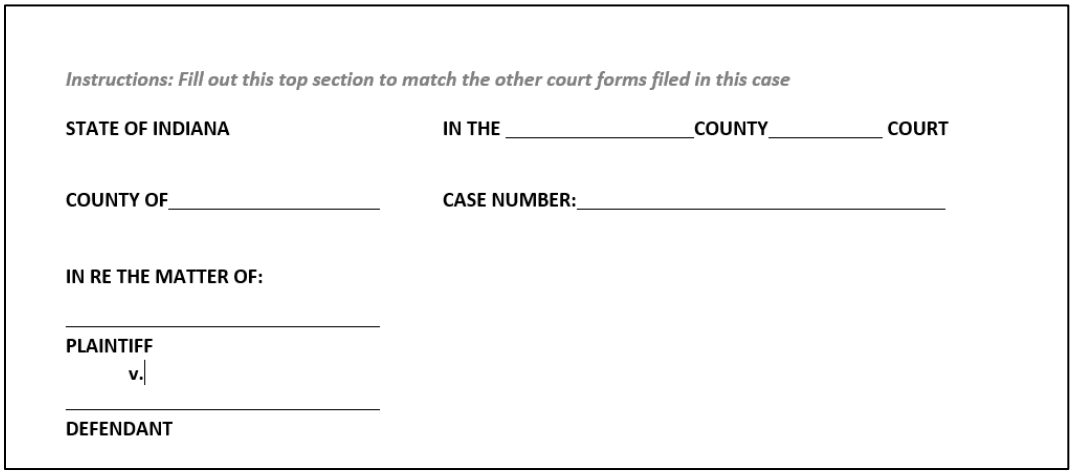
- In Indiana, you generally have twenty days to file your answer once you've received the complaint.

- When completing the Answer, you must respond to each part (*paragraph number*) of the Complaint filed by the plaintiff. If you skip a part of the Complaint in your Answer, the Court will take it as true.

- If you want to file your paper documents at the courthouse, you will need to print them when you have finished filling them out. You can review the information about how to file your forms with the court in-person at this link: https://indianalegalhelp.org/how-to-file-forms-with-the-court-in-person/

- **If you choose to e-file**, instead of filing in-person, make sure you review the information at this link: https://indianalegalhelp.org/how-to-electronically-file-forms-with-the-court/

Who Should be Completing What?



Instructions: Fill out this top section to match the other court forms filed in this case

STATE OF INDIANA **IN THE _____COUNTY_____ COURT**

COUNTY OF_____ **CASE NUMBER:_____**

IN RE THE MATTER OF:

_____
PLAINTIFF
v.
_____
DEFENDANT

The picture above is a "Caption" and is at the top of each form. You will fill in the case information here.



The icon to the left is the "**Defendant**" icon. Wherever you see the Defendant icon, you will begin filling in the blanks with the correct information. Once you see the Court Staff icon, stop filling in the blanks until you see the Defendant icon again. The Court Staff icon is explained below.



The icon to the left is the "**Court Staff**" icon. Wherever you see the Court Staff icon, the court staff will fill in the blanks with the required information. **Do not complete** anything in areas where you see the Court Staff con.

There may be entire pages or parts of pages in this form packet that only the court staff will complete. These pages will only have the Court Staff icon and no Defendant icons.

Forms Included in this Packet

1) Appearance
    - This is the form that tells the court and the other party how to contact you if they need to.

2) Answer
    - This is the form that lets you respond to a lawsuit and tell the court which parts of the other party's claims you agree with, which parts you disagree with, and which parts you are unsure about.

Terms You May Need to Know

Plaintiff — The person or company that is suing you.

Defendant — This is you. The person being sued in a civil legal case, or lawsuit.

Complaint — The official legal document filed by the **Plaintiff** to start a civil lawsuit against you. It lists the reasons they are suing you and tells the court what they want to happen in the case.

Answer — Your formal response to the lawsuit (**Complaint**) filed against you. In this document, you tell the court which parts of the Complaint you agree with, which you disagree with, and which you aren't sure about. You can also use this form to list your defenses.

Defenses — These are legal reasons why you should win the case or face reduced damages, even if some of the things the **Plaintiff** says in the **Complaint** are true.

Important: You must list your defenses in this initial **Answer**. If you do not list them now, you may lose your right to use them later in the case.

Common examples of defenses include:

- **The Plaintiff waited too long:** The law sets a deadline for when certain lawsuits have to be filed. If the Plaintiff missed the deadline, you may be able to use this defense (this is called the "Statute of Limitations"). The deadline is different depending on the type of case, so you may want to speak with a lawyer to find out if this applies to your situation.
- **It's the Plaintiff's fault too:** The Plaintiff caused part of the problem.
- **No legal claim:** Even if everything the Plaintiff says is true, they have not described a valid legal reason to sue you. You may need to speak with a lawyer to find out if this applies to your situation.
- **You already settled:** You and the Plaintiff already reached an agreement to solve the problem, and you held up your end of that agreement.
- **Wrong Court:** This specific court is not the right court or county to rule on this case.
- **You were tricked into the agreement (Fraud):** The agreement is not valid because the Plaintiff lied about something important that caused you to sign the contract or agreement.
- **Unreasonable delay (Laches)**: The Plaintiff waited too long to start the lawsuit, and this delay makes it unfair for the case to go forward. For example, because they waited so long, important evidence has been lost, people have forgotten what happened, or it has caused you financial harm.

Perjury — When a person makes a false statement under oath in the things they say in case documents or when they testify in court, when they know the statement is false or they don't believe the statement is true.

Related Cases — Sometimes there can be other cases that have the same parties. Here are some examples of related cases:

- In a debt collection case, there might be a separate case involving the same debt or the same parties, like a small claims case, a bankruptcy case, or a divorce case where the debt was assigned to one of the parties.
- In family law cases, like divorce or paternity, if the Department of Child Services is involved with the family. Also, it's possible that someone other than a parent(s) was responsible for caring for the child(ren), like in a Minor Guardianship case.
- In an eviction case there might be a separate case that is about any damages owed.
- In a probate/estate case, if there used to be an adult guardianship case related to the person that died.

Certificate of Service — Note*: You will need to know these options each time you have to tell the court how you served court papers to the other person in the case. Come back to this definition when you need to remember what your options are, like when you are completing the Certificate of Service sections in the forms included in this packet.

When a court case begins, it's important for both sides to know about it and receive official forms. This is called "service of process." These forms tell them about the case and their rights. You are required to give a copy of every form you file with the court to every other person involved in the case. You must say when you gave them the copies and how you gave them the copies. Here are the ways to get them their copies:

First Class U.S. mail — You can serve the court forms by paying to have them sent by certified mail. The clerk will ask you to complete the Certified Mail card. The clerk will serve the court forms by Certified Mail. Certified mail ensures that the court forms have been signed for and received.

Hand Delivery — You can serve the court forms by paying to have a sheriff or private company hand-deliver them to the other party. Ask the clerk for information on how to use the Sheriff's office to serve your court forms.

Indiana's E-Filing System — You can serve the court forms by filing your documents electronically. Ask the clerk for information on how to e-file your court forms.

Instructions: Fill out this top section to match the other court forms filed in this case

STATE OF INDIANA **IN THE _____ COUNTY _____ COURT**

COUNTY OF _____ **CASE NUMBER:** _____

_____

Plaintiff

v.

_____

Defendant

APPEARANCE BY SELF-REPRESENTED PERSON IN CIVIL CASE



1. My name is: _____.
2. I am representing myself in this case and I do not have a lawyer.
3. My address is (***Include your street name, city, state, and zip code***):

   _____

   _____ .

   My email address, phone number, and fax number are (***An email address and a 10-digit phone number are required below; a fax number is not required if you do not have one***):

   Email Address: _____

   Phone Number: _____

   Fax Number: _____
4. I would like to receive my court documents and case information (***Select One Below***):

   ☐ at my street address.

   ☐ at my email address.

   ☐ at the Attorney General confidential address. ***(This option is only available if you have used this address in another court case.***)
5. As defined in Administrative Rule 8(B)(3), this case type is a (***Type the two letters included in your case number***): _____.
6. (***Select One Below***):

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www.indianalegalhelp.org

☐ There are other cases related to this case. The case number(s) can be found below:

_____

☐ There are no other cases related to this case.

7. **(*Select One* Below):**

☐ I am not aware of any additional information required by a local rule that I must provide.

☐ There is additional information required by local rule that is provided below:_____

_____

Signature:_____ Date:_____

Certificate of Service



I certify that I mailed a copy of this Appearance to the attorney for the Plaintiff or to the Plaintiff themselves if they aren't represented by an attorney, as listed below. I sent this form to:

First and Last Name	Address	Type of Service Used	Date of Service

Signature: _____

Date: _____

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Instructions: Fill out this top section to match the other court forms filed in this case

STATE OF INDIANA **IN THE _____ COUNTY _____ COURT**

COUNTY OF _____ **CASE NUMBER:** _____

_____

Plaintiff

v.

_____

Defendant

ANSWER

1. My name is: _____
2. I'm the Defendant in this case and I'm filing this Answer to respond to the Complaint.
3. I admit the following paragraphs of the Complaint, meaning I agree they are true and I will not be able to challenge them later (***List the paragraph numbers from the Complaint that you admit. For example: If you admit paragraphs 1 and 3, write "1, 3." Only admit paragraphs you know are true.***):

   _____

   _____.
4. I deny the following paragraphs of the Complaint, meaning I am saying they are not true and the Plaintiff will have to prove them (***List the paragraph numbers from the Complaint that you deny. If a paragraph contains some information you agree with and some you do not, include that paragraph number here. You will have a chance to give more details at the hearing. For example: If you deny paragraphs 2 and 4, write "2, 4."***):

   _____

   _____.
5. I don't have enough information to admit or deny the following paragraphs of the Complaint, meaning I am not admitting they are true and the Plaintiff will still have to prove them (***List the paragraph numbers from the Complaint that you do not have enough information about to admit or deny. For example: If you don't have enough information about paragraphs 5 and 6, write "5, 6."):***

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_____

_____.

6. I believe I have these defenses (***a defense is a special kind of legal reason why you should win or owe less money. Use the list of defenses in the "Terms You May Need to Know" section to help you. Write each defense in one short sentence and give the facts that support it.****):*

_____
_____
_____
_____
_____
_____
_____
_____
_____
_____

Certificate of Service



I certify that I got a copy of this form to the attorney for the Plaintiff or to the Plaintiff themselves if they aren't represented by an attorney, as listed below. I sent this form to :

First and Last Name	Address	Type of Service Used	Date of Service

Signature: _____

Date: _____

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